

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an application for revision under and in terms of Article 138 of the Constitution, read with the High Court of the Provinces (Special Provisions) Act No. 19 of 1990.

Court of Appeal Case No.
CA (PHC) 186/2020

High Court of Ratnapura Case No.
RA/63/2017

Magistrate Court of Kalawana Case
No. 13197

Officer in Charge,
Police Station,
Kalawana.

Plaintiff

Vs.

1. Angodage Kularuwan Tharanga Priyadasa,
Ruwan Sewana,
Delgoda, Kalawana.

1st Party

2. Kaluwa Handi Cyril Rathnayake,
Panapola, Kalawana.

2nd Party

AND BETWEEN

Angodage Kularuwan Tharanga Priyadasa,
Ruwan Sewana,
Delgoda, Kalawana.

1st Party- Petitioner

Vs.

Kaluwa Handi Cyril Rathnayake,
Panapola, Kalawana.

2nd Party- Respondent

AND NOW BETWEEN

Angodage Kularuwan Tharanga Priyadasa,
Ruwan Sewana,
Delgoda, Kalawana.

1st Party- Petitioner- Appellant

Vs.

Kaluwa Handi Cyril Rathnayake,
Panapola, Kalawana.

2nd Party- Respondent- Respondent

Before: **Damith Thotawatte, J.**
K.M.S. Dissanayake, J.

Counsels: Sandamal Rajapaksha instructed by Aruna Jayathilaka for the 1st
Party- Petitioner- Appellant.

Arosha Silva for the 2nd Party-Respondent-Respondent.

Argued: 27.02.2026

Written submissions 09.12.2024 by 1st Party- Petitioner- Appellant.

tendered on: 11.03.2025 by 2nd Party-Respondent-Respondent.

Judgment Delivered: 26.06.2026

Introduction

The present appeal has been preferred by the 1st Party-Petitioner-Appellant (hereinafter sometimes referred to as the "Appellant") against the judgment dated 09.11.2020 delivered by the learned High Court Judge of Ratnapura in Revision Application No. RA/63/2017, whereby the learned High Court Judge dismissed the revision application preferred by the Appellant and affirmed the order dated 27.09.2017 made by the learned Magistrate of Kalawana functioning as the Primary Court Judge under the provisions of the Primary Courts' Procedure Act No. 44 of 1979 (hereinafter referred to as the "PCP Act").

Factual Matrix

The dispute concerns a strip of land situated between the lands occupied by the Appellant and the 2nd Party-Respondent-Respondent (hereinafter sometimes referred to as the "Respondent") at Kalawana. According to the Appellant, the Respondent, who owned the adjoining land whereon a fertilizer store is operated, had unlawfully encroached upon a portion of the Appellant's tea cultivation by filling soil, extending the boundary of his land and uprooting several rows of tea bushes. The Appellant lodged a complaint with the Kalawana Police on 30.04.2013. In his statement to the Police dated 07.05.2013, the Respondent acknowledged having filled the disputed land with soil and explained that he had done so as a remedy for soil erosion caused by flooding.

Three days following the initial complaint, police officers visited the location, inspected the land and had recorded their observations. As the dispute could not be amicably resolved, the Officer-in-Charge of Police, Kalawana, filed an information before the Magistrate's Court of Kalawana bearing Case No. 13197 under Section 66(1)(a) of the PCP Act on 15.05.2013, alleging the existence of a dispute affecting land likely to occasion a breach of the peace.

The position of the Respondent throughout the proceedings was that he had been in possession of the disputed strip of land and that the acts complained of had been carried out within the limits of his own property. The Respondent further maintained that no dispossession of the Appellant had taken place within the two months preceding the institution of proceedings,

It is relevant to note that the Appellant asserts that prior to the Respondent's impugned acts, there existed an undisputed four-foot bare strip of land between the Appellant's tea plantation and the Respondent's building. The dispute arose, on the Appellant's case, from the Respondent's alleged unlawful act of uprooting the Appellant's tea bushes and expanding that bare strip by filling soil to match the parallel level of the Respondent's land.

Progression of Litigation

Proceedings before the Magistrate's Court and First Revision

Upon the filing of the information by the Police, the learned Magistrate had conducted an inquiry under Section 66 of the PCP Act. Affidavits, counter-affidavits and documentary material were tendered by the parties and the learned Magistrate also caused an inspection of the disputed portion of land to be carried out on 10.07.2013. The inquiry culminated in an order dated 11.09.2014, whereby the learned Magistrate refrained from issuing an order regarding possession, concluding that it had not been proven which party held possession within two months prior to the date on which the information was filed.

Being aggrieved by that order, the Appellant filed a revision application bearing No. RA/01/2015 before the Provincial High Court of Ratnapura. By order dated 01.09.2016, the learned High Court Judge set aside the Magistrate's order and directed a fresh inquiry to be conducted.

Re hearing before the Magistrate's Court

The learned Magistrate of Kalawana recommenced the inquiry on 25.01.2017. After reviewing affidavits, counter-affidavits and written submissions submitted by the parties, the learned Magistrate delivered an order dated 27.09.2017, finding that there was no material to establish that the Respondent had forcibly dispossessed the Appellant within two months preceding the filing of the information. The learned Magistrate further concluded that the Respondent was in possession of the disputed strip of land and accordingly made order recognizing such possession until displaced by a competent court of law. The Appellant was also restrained from interfering with such possession.

Proceedings before the Provincial High Court - Second Revision

Being dissatisfied with the said order of the learned Magistrate, the Appellant invoked the revisionary jurisdiction of the High Court of Ratnapura by filing Revision Application No. RA/63/2017. The principal complaints urged before the learned High Court Judge were that the learned Magistrate had failed to identify the true subject matter of the dispute, had failed to properly evaluate the documentary evidence, in particular the Grama Niladhari report marked 1 ⓓ 3, the police information and the Appellant's counter-affidavit and had incorrectly proceeded under Section 68(1) instead of Section 68(3) of the PCP Act and had arrived at conclusions inconsistent with the material before Court.

By judgment dated 09.11.2020, the learned High Court Judge dismissed the revision application. The learned Judge held that the learned Magistrate had correctly identified the disputed land as the 2nd land depicted in Deed No. 626 (marked 1 ⓓ 1), had followed the procedure prescribed by law, and that none of the matters relied upon by the Appellant constituted exceptional circumstances warranting revisionary intervention. The learned High Court Judge further held that the material before the Magistrate did not establish a case of recent dispossession within the meaning of Section 68(3) of the PCP Act.

Reliefs Sought Before the Court of Appeal

Being aggrieved by the order of the learned Judge of the High Court the Appellant has filed this instant application seeking to set aside both the order of the learned High Court Judge dated 09.11.2020 and the order of the learned Magistrate dated 27.09.2017.

Grounds of Appeal

The principal grounds advanced by the Appellant may be summarized as follows:

- a) The learned Magistrate failed to properly identify the disputed land and the true nature of the dispute.
- b) The learned Magistrate failed to adequately consider the documentary and other material tendered by the Appellant, including the police information, the Grama Niladhari report marked 1 ⓓ 3 and the Appellant's counter-affidavit.

- c) The learned Magistrate ought to have proceeded under Section 68(3) of the PCP Act on the basis that the Respondent had recently and forcibly dispossessed the Appellant within two months preceding the filing of the information.
- d) The High Court Judge on revision, is alleged to have delivered his order based solely on the Grama Niladhari's report, without considering the Magistrate's own scene inspection report which had contradictory findings

Analysis

It is well settled that proceedings under Section 66 of the PCP Act are preventive, summary and provisional in nature. Their object is not the adjudication of title or competing proprietary rights but the preservation of public peace pending the determination of such rights by a competent civil court. As affirmed in *Kanagasabay v. Mawilwaganam*¹ the primary objective of the jurisdiction conferred on the Magistrate is the prevention of a breach of the peace arising in respect of a dispute affecting land. The Court is therefore concerned primarily with actual possession and not ownership.

The statutory scheme under section 68 distinguishes between the determination of actual possession on the date of the filing of the information under section 68(1) and the special case contemplated by section 68(3), where a person who had been in possession has been forcibly dispossessed within two months immediately preceding the filing of the information. As held by the Supreme Court in *Ramalingam v. Thangarajah*², the inquiry under Part VII must ordinarily be confined to the question of actual possession on the date of the filing of the information, save where such recent forcible dispossession is established.

In the present case, the learned Magistrate had examined the material placed before Court, including the information filed by the Officer-in-Charge, Kalawana Police, together with the affidavits, documentary material and the submissions tendered by the parties, as required by section 72 of the Primary Courts' Procedure Act. The material before Court included the observations recorded upon the police inspection of the subject property, as well as the Respondent's explanation that the earth filling carried out on the disputed land had been undertaken to prevent soil erosion affecting his land. Upon an evaluation of the entirety of

¹ (1976) 78 NLR 280

² (1982) 2 Sri LR 693

the evidence, the learned Magistrate concluded that the Respondent was in possession of the disputed strip of land on the date the information was filed. Such an inquiry accords with the duty imposed upon the Primary Court by section 68(1) of the Act to determine which party was in possession of the land on the date of the filing of the information under section 66, as recognized by this Court in *Nimal Karunarathne v. Leelawathi Jayawardena Rathnayake and others*³ and *Ganitha Gedera Piyasena and others v. Rohitha Sanjeewaa Arambewela and others*⁴.

The learned Magistrate further found that the evidence did not establish that the Appellant had been forcibly dispossessed by the Respondent within the statutory period contemplated by section 68(3) of the Act. In the absence of a positive finding of forcible dispossession within two months immediately preceding the filing of the information, section 68(3) has no application. As explained by this Court in *Dinesh Kesara Gunasekara v. Thilakarathna Mudiyanseelage Thilakarathna and another*⁵, section 68(3) constitutes a special provision applicable only where the Court is satisfied that a person who had been in possession has been forcibly dispossessed within the prescribed statutory period. Likewise, in *Vithanage Samson v. Officer-in-Charge, Police Station, Galle and others*⁶, this Court reaffirmed that the exercise of the power under section 68(3) is conditional upon a definite finding of forcible dispossession within the statutory period, such satisfaction being a necessary and mandatory prerequisite to an order restoring possession.

In those circumstances, the learned Magistrate correctly determined the dispute by reference to the actual possession existing on the date of the filing of the information. The Appellant's contention that the inquiry ought to have been determined under section 68(3) is therefore untenable, as the evidence did not establish a forcible dispossession within the prescribed statutory period.

As regards the Appellant's complaint concerning the discrepancy between the Grama Niladhari Officer's report and the learned Magistrate's observations upon inspection of the subject property, it is to be observed that proceedings under Section 66 of the Primary Courts' Procedure Act are summary and preventive in nature. The learned Magistrate, having conducted the inquiry and personally inspected the subject property, was best placed to evaluate the evidence and determine the weight to be attached to the competing factual material. In the exercise of its revisionary jurisdiction, the Provincial High Court was

³ CA (PHC) 157/2003, Decided on 28.02.2018

⁴ CA (PHC) 09/2014, Decided on 10.03.2023

⁵ CPA/APN 132/2018 Decided on 29.04.2021

⁶ CA (PHC) 10/2014, Decided on 09.05.2022

not entitled to re-evaluate the evidence or substitute its own factual conclusions merely because another view was possible. Accordingly, the learned High Court Judge cannot be faulted for declining to interfere with the learned Magistrate's appreciation of the evidence.

In the present case, the Appellant's complaint is directed solely at the correctness of the learned Magistrate's factual findings and the weight attributed to the competing evidence. It discloses no jurisdictional error, illegality, denial of natural justice, material procedural irregularity, or manifest perversity occasioning a miscarriage of justice so as to warrant revisionary intervention.

The first question for the learned High Court Judge, in the exercise of its revisionary jurisdiction, is whether the impugned order discloses exceptional circumstances warranting revisionary intervention. As reiterated by His Lordship Neil Iddawala, J. in *Melitus Charles Kulasekara v. Inspector of Police, Ganemulla and Others*⁷, His Lordship approvingly citing the following passage from *Abdul Hassan Mohamed Kaleel v. Mohamed Kaleel Mohamed Imithiyas*⁸:

"Thus, the existence of exceptional circumstances is the process by which the Court selects the cases in respect of which this extra-ordinary method of rectification should be adopted. If such a selection process is not there, revisionary jurisdiction of this Court will become a gateway for every litigant to make a second appeal in the garb of a revision application or to make an appeal in situations where the legislature has not given right of appeal."

In *Kehelpannala Ralalage Upali Mahinda and others v. Korale Gedara Upali Kumara Abeyrathne*⁹, the Court affirmed the refusal of revision where no exceptional circumstances had been demonstrated, notwithstanding several challenges directed at the Magistrate's appreciation of the evidence and other findings. Likewise, in *Aysha Hameed and others v. Mohamed Mohideen Shaul Hameed and others*¹⁰, the Court declined to exercise its revisionary jurisdiction, holding that the petitioners had failed to plead and establish exceptional circumstances warranting intervention. The Court further observed that revision is not a vehicle for correcting alleged errors in the Magistrate's appreciation

⁷ CA (PHC) 140/2017 Decided on 30.05.2023

⁸ CA (PHC) APN/141/2016 Decided on 25.01.2017

⁹ CA PHC 148/2018 Decided on 09.09.2025

¹⁰ CA (PHC) CPA 13/2021 Decided on 02.03.2023

of the evidence, but is confined to cases involving jurisdictional error, illegality or a miscarriage of justice.

It is also significant that nearly nine years have elapsed since the learned Magistrate's order dated 27.09.2017, during which there has been no reported breach of the peace between the parties. This tends to indicate that the order has achieved the primary object of proceedings under Section 66, namely, the preservation of the peace. If the Appellant remains confident of his claim founded upon his alleged long possession and the title asserted under Deed No. 626, his remedy lies in seeking a final adjudication of his proprietary rights before the competent civil court and not in persistent continuation of these proceedings through successive Appellate and revisionary applications.

The findings of the learned Magistrate were findings made within the jurisdiction vested in that Court after an inquiry conducted in terms of the PCP Act. Nor has it been demonstrated that the learned High Court Judge misdirected herself in law in refusing to interfere with those findings. I am therefore unable to find any basis upon which this Court may exercise its extraordinary revisionary powers under Article 138 of the Constitution to interfere with the concurrent findings of both the Magistrate's Court and the High Court.

Conclusion

For the foregoing reasons, I find no basis upon which this Court may interfere with the judgment of the learned High Court Judge of Ratnapura dated 09.11.2020.

Accordingly, the appeal is dismissed with costs fixed at Rs. 50,000/-.

Judge of the Court of Appeal

K.M.S. Dissanayake, J.

I agree

Judge of the Court of Appeal